

1881 June 15

Abraham Dirksen (in his Complaint of May 26, 1886) alleges that on this date:

1. He and seven others are induced by J. B Young, an officer of H. L. Hollister's First National Bank of Sioux Falls, to execute two notes, and a \$3000 mortgage on his land to secure them, for the purpose of securing cash advances to himself and three neighbors. The first promissory note is executed scheduling interest payments to be made on the 1st day of January for each of the years 1882 through 1886. A second promissory note is executed scheduling interest payments to be made on the 1st day of July for each of the years 1881 through 1886. The total of payments made to equal \$360 annually, 12% of \$3000.
2. He was "induced" by J. B. Young to execute the notes for the purpose of assisting his neighbors to secure advances from the National Bank of Sioux Falls, or H. L. Hollister, or "Other parties to the plaintiff unknown". His neighbors were, and the amount advanced to them was; Henry Wall (Dirksen's brother-in-law) \$350, Peter Wall (Henry's brother) \$300, Heinrich Wedel \$200, Cornelius Wedel \$150, D. Tufts \$150, Elisabeth Heinrichs (Dirksen's sister) \$150 and Sibel Miller \$150. Dirksen himself received \$350 for a total of \$1800.

1883 July 24. E. Reiff (in his Answer of August 14, 1886) alleges this to be the date of the first of four "chattel mortgages begun by advertisement" whereby D. Reiff (a relative?) loans Dirksen \$1074 and \$116. Then E. Reiff loans Dirksen \$153.75 and \$921. The loans taking place on or after July 24, 1883 and before February 19, 1885.

DIRKSEN alleges: He and Reiff have a "settlement of all accounts" attached to Dirksen's indebtedness to Reiff for "various amounts", all secured by "chattel mortgage" of stock and other personal property on Dirksen's farm. The settlement is met with the execution by Dirksen of a promissory note in the sum of \$500 secured by an "Indenture of Mortgage" on Dirksen's land, filed with the Minnehaha County Register of Deeds, recorded in book "N" of mortgages, page 525 4 days later.

REIFF "expressly denies" that the said note and mortgage were executed in "full satisfaction" of all outstanding obligations from Dirksen to Reiff.

1885 - 1 - 19 (January 19):

DIRKSEN alleges: Reiff arrives at Dirksen's farm and takes 6 horses, eight cattle and 1 buggy and harness agreeing that said stock and property is an "entire satisfaction of the debt secured by said mortgage upon said land". Reiff delivers to Dirksen the \$500 note secured by the March 21, 1884 "Indenture of Mortgage" on Dirksen's land. Then Dirksen agrees to execute yet another \$500 note to Reiff, and another "Indenture of Mortgage" to secure it, in exchange for which Reiff would then pay off the amount

claimed, by J. B. Young, to be due upon the June 15, 1881 H. L. Hollister mortgage recorded in said book "N" of mortgages, p.425.

REIFF alleges: He paid Dirksen \$1100 for which Dirksen executed and delivered to Reiff a "Warranty Deed" to his land, said deed recorded on Jan 20, 1885 in Book "N" of Deeds on page 540. Offers Exhibit "A" as the written agreement and contract between Reiff and Dirksen which Dirksen called the second \$500 note for which Reiff would pay off his debt to Young.

1885 - 2 - 19 (February 19): Last of "various business transactions" between Dirksen and Reiff, alleged by Reiff. Being specifically a written agreement and contract included as Exhibit "A", which includes these elements:

1. "Exhibit A" is an agreement made this 19th day of February, 1885, between E. Reiff of the first part and Abraham Dirksen of the second part". It describes four undated "chattel mortgages, begun by advertisement" in return for which Dirksen receives from D. Reiff \$1074 and \$116. Then receives from E. Reiff \$153.75 and \$921. Total of the four mortgages being \$2264.75 plus 12% per annum interest.
2. "Enjoining of the foreclosure" and "stipulations" and "vacating of said injunction" leads to the following "mutual agreement between said parties in settlement of said causes".
3. In consideration of \$1310 E. Reiff agrees to execute to A. Dirksen a "bond for deed" of his land and to make to Dirksen "good title" to two horses and a set of harness which E. Reiff took in foreclosure.
4. Dirksen "is to be permitted" to buy back the horses and harness at an advertised foreclosure sale at a cost of "no more than" \$210. If he does not, then he "consents that said Reiff may buy in the same". If Dirksen does buy the horses and harness, the cost is to be "included in the purchase price of said land and secured in said bond for a deed by note therein described, due Dec. 1st, 1885, interest at 12% per annum".
5. Reiff "shall credit on the certain notes now held by him" (described in detail within the agreement and totaling \$3468.68) in consideration of which said Dirksen agrees that Reiff shall foreclose said mortgages, "so far as they relate to the three horses, three colts, harness, four cows and a buggy, now in possession of Reiff".
6. Dirksen, at the time of delivery to him of said horses and harness, shall execute a chattel mortgage thereon to said E. Reiff to secure the certain note of \$210 dated February 19 1885, due on or before December 1st, 1885, with 12% interest per annum payable annually. This to provide additional security on "said note to that contained in the said bond for deed".
7. In consideration of the (previous) premises Reiff further agrees to pay W. A. Houts his "certain lien on certain of said chattels and claims of liens against said land in sum of \$157.97. This action will then absolve all claims by all parties (Dirksen,

both Reiffs and Houts) against one another “excepting said property now in hands of said Reiff” subject to the mortgage sale of preceding provisions.

8. The \$500 note and mortgage of said Dirksen on said land will be cancelled when he makes full payment of \$1310, the purchase price of said land, with the \$500 being “included in and merged in said \$1310” but the mortgage securing it “kept alive” against any third party claims against the land.
9. The document was signed and delivered in the presence of A. Haines and C. D. Cone, both lawyers widely advertised in newspapers of the time. Of which there were six in Sioux Falls in 1885/86.

1885 - 5 - 22 (May 22): Sheriff sells Dirksen’s land under terms of foreclosure for the due, but unpaid, amounts of \$4,805 principal and \$240.20 interest. A Certificate of Sale is issued to J. B. Young for \$900, which is credited to the total amount owed by Dirksen.

1886 - 4 (April): J. B. Young promises Dirksen that should he secure a deed to Dirksen's property it would be transferred to Dirksen's wife. This being "Just prior to the removal of said Young from the Territory of Dakota".

1886 - 5 - 11 (May 11) : J. B. Young assigns the May 22, 1885 Sheriff's Certificate of Sale to Earnest Reiff, defendant in Dirksen’s complaint.

1886 - 5 - 22 (May 22): Dirksen’s complaint notarized. Case #1946.

1886 - 5 - 24 (May 24): “Period for the redemption of said land from said foreclosure sale having expired and no redemption of the same having been made”, the Sheriff executes and delivers to Reiff a “Sheriff’s Deed” to the property, recorded in Book “V” of Deeds on page 404.

1886 May 26
Dirksen’s complaint is served.

1886 - 8 - 14 (August 14): Dirksen’s complaint “Issue is joined”.

1886 - 9 - 24 (September 24): Dirksen killed by lightning.

1886 - 10 - 29 (October 29): Case #1946 trial, Plaintiff Dirksen, defendant Reiff, scheduled for trial at a regular term of the District Court of the fourth judicial district of the Territory of Dakota, in and for said Minnehaha County, at the court house in the city of Sioux Falls, in said Minnehaha County, commencing on the 12th day of April, 1887.

1887 - 4 - 12 (April 12): The “court ordered in said action to be entered in favor of the defendant (Reiff) and against the Plaintiff (Dirksen)”.

1892 - May 6: "It is ordered and adjudged that the defendant Ernest Reiff have judgment against the said plaintiff, upon the cause of action set forth in the complaint herein, and that the said complaint be and the same hereby is dismissed." The court also ordered a "Notice of Pendency" previously filed by Reiff with the office of the Registrar of deeds, be cancelled.

Dirksen's wife Sarah, 41 years old with six children aged one to 17 years, are left destitute.

They join other relatives moving north to new lands opening for homestead in Richville, Logan County, North Dakota.